

From: Dodger Barran barrandodger@gmail.com
Subject: urgent
Date: 11 April 2023 at 12:27 pm
To: assistanttreasurer@dts.vic.gov.au

Dear Work Cover Minister Danny Pearson,

According to legislation in Victoria when I was contracted to a VICTORIAN statutory authority:

93 Provisions to apply where employer does not meet liabilities

1. If the employer of the worker neglects, refuses or is unable to pay compensation in discharge of the employer's liability under section 72(1) within 21 days of receiving the claim for payment of compensation, the liability becomes a liability of the Authority.

Source: https://content.legislation.vic.gov.au/sites/default/files/2022-09/13-67aa046_authoris.pdf

I write in regard to dr Richard mclean formerly of 2 McCubbin st Footscray in Victoria.

He became distressed from work over time.

He left his post on 19 jan 2021.

He has never been paid workers compensation.

His role was working for the NDIS and contracted to the NDIS Commission and only legislated to work within the state of Victoria.

That means work cover is the insurer.

The Government however have rejected his claim at ComCare and the claim sits in limbo at the AT where a government lawyer Kate Watson specialised in defending the government in relation to the SRC act is an impossible opponent and disregards Dr McLean's need to be represented as a person with a disability.

They say he is not an 'employee' for the purposes of the SRC act.

On the NDIS Commission's website it clearly states what it means to be employed at the NDIS.

'Under the NDIS Commission, a worker is anyone who is employed or otherwise engaged to provide NDIS supports and services to people with disability. Workers can be paid or unpaid, and can be people who are self-employed, employees, contractors, consultants, and volunteers.'

Source: <https://www.ndiscommission.gov.au/workers>

His rejected work cover payments have led to immeasurable suffering and disadvantage/detriment.

It is within the ministers remit to immediately act to intervene in compensating him to relieve him of disadvantage homelessness and the risk to his health and happiness.

Every worker deserves workers compensation in Australia.

It is within the remit of the minister to make a ruling on compensation when a liability cannot be decided upon.

It is especially true if this leads to disadvantage or being burdened in hardship.

This disadvantage of being financially abused has led to his hospitalisation in feb 2021.

That set the scene for his subsequent suicide attempt and it was later deemed a 'fatal' injury and a 'lethal' attempt in the hospital's FOI documents.

He was accidentally discovered with no observable pulse and revived from a certain death.

After he was revived and then released - workers compensation still did not pay.

In face he was further universally exploited victimised and persecuted with a systemic level financial abuse.

On his last hospitalisation the malicious destruction of all his possessions in his squat he could not afford today occurred.

After his release recently from weribee mercy hospital he was rejected into a homeless shelter in west Melbourne with a simple brown paper bag of clothes and the shirt on his back.

The detriment has been profound and easily avoidable.

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It is important that the detriment caused by the rejection of his workers compensation is immediately rectified to save an existential risk.

That is because Dr Mclean is in a position financially in life which is simply not sustainable.

He cannot afford basics for the purposes of existing in society in a meaningful way with any measure of peace or happiness.

His existence has become a living hell that is being dealt to him with malice and a consciousness and awareness of his plight.

It is said that dr mclean condition is pre existing but this disproven to be untrue when you consider all the evidence.

In 2021 after hospitalisation due to financial distress which has led dr mclean to squatting, the exit notes from Dr Michael Lagrasso stated that dr Mclean is not suffering from schizophrenia and in fact is neither 'psychotic' nor 'delusional'.

A diagnosis was required in order to justify the hospitalisation and it was only because of this that 'adjustment disorder' was labelled.

The observation of being neither 'psychotic' nor 'delusional' negates that dr mcleans interruption from his work contracted to the NDIS commission was in no way related to a prior diagnosis of 'schizophrenia'.

He wrote a human rights awarded autobiography on the period of his life when he aligned with that label of schizophrenia to great acclaim and a public profile

Yet he was vilified forte and the stigma of his identification with a label from a brave and courageous narrative would lead to his destruction despite all herculean efforts to prove his 'sanity' and his critical thinking by completing a PhD in 2020 at Victoria University.

Therefore the diagnosis of schizophrenia is on the public record but not current.

The exit statement from Dr Michael Lagrasso at Werribee mercy hospital in 2021 after his suicide attempt illustrates that the cessation of his employment as an artist life coach and peer support worker whilst he was contacted to the NDIS Commission was not related to a prior diagnosis.

That is also a reason why HCF should pay his income protection for the entire length it covers immediately.

Dr Mclean was contacted to the NDIS Commission in 2018 and it is a victorian Statutory authority being of ABN (x)

That statutory authority he was contracted to existed at the time of his employment when the ndis was rolled out to oversee the Victorian sector and dr mclean was only permitted toward with the state of Victoria

Therefore it is the state branch of work safe that is responsible for Dr Mclean's insurance payment in terms of workers compensation and it is grossly overdue and an intervention is needed to avoid a potential catastrophe.

The time for workers compensation to be paid going by the legislation is: (x weeks).

Dr Mclean left work o the 19th Jan 2021.

During the time in which dr Mclean and remained uncompensated the following tragedies have occurred to him:

- he has struggled as a vagrant not being able to afford rent,
- A VCAT rulings made whereby an amount of times granted for him to vacate the premises at 2 Mccubbin st in Footscray vic 3011
- he has become homeless and was rejected from hospital into a mens homeless shelter
- he has been hospitalised dressed up as mental illness but in actuality the result of his illness from work in addition to settlements compensations and entitlements never being paid to him which include:
- A settlement from his former partner for the 5 year relationship in which they were engaged to be married
- His HCF income assist insurance policy number
- His workcover who's current state is unpaid because the Government ae arguing that he is not a worker for the purposes of work cover and the SRC act.

On his latest hospitalisation that lasted nearly two months, the contents of his home and all his worldly possessions were disposed of by Hung Ho the landlord whilst he was incarcerated and powerless to do anything about it and

He was made aware the destruction of his home was happening by a neighbour Michael Tipping and Dr Mclean called police but they refused to intervene in saving his possessions which have now been destroyed or disposed of,

He has attempted suicide in his first hospitalisation due to massive financial detriment and for being made a scapegoat and

The 'system' intelligently rendered him vagrant who could not afford today rent

He also suffered family violence from his former fiancé of five years Steve iasonidis who was comparatively extremely wealthy and who exploited dr mclean nest egg over five years from 2010-2015

Mr iasonidis was pivotal in incarcerating dr mclean as 'punishment' for attempting gain access to a portion of his superannuation as deemed fair and equitable I their separation

His business at www.richmclean.com.au was maliciously destroyed by Mcron21 and all backups emails deleted from servers which is akin to destroying evidence before court and destroyed dr clans online identity

His income assist at HCF with policy number (x0) was rejected to be paid and HCF ultimately banned dr mclean from contacting their offices

Dr mclean was banned from contacting work safe in Victoria and this meant that recoveries of his compensation were impossible

He intended to make a claim against Weribee mercy hospital for the gross negligence regarding his suicide attempt in which he was revived from certain death and likely has a cognitive impairment and never worked again and this was unanimously rejected to be acknowledged

He was banned from contacting AFCA and AFCA would longer represent any of dr mclean issues to be determined by a governing body (including)

His settlement with TAL for income assist being rejected in his work was decided by the AHRC and was not impartial because liz lindsberg free kicked the settlement - worth over a million dollars - to the opposition. The reason dr mclean suspects the government is behind the movement of oppression is because he received a much reduced settlement from TAL when he approached them directly

The ndis minister bill shorten refused to respond to dr mclean and his evidence of being a worker or employee for the purposes of the SRC act in the form his DSS Government login that cites his employed status in a Government agency

This lack of response resulted in the non acknowledgement of his work cover claim and no one has ever intervened.

I ask you to intervene today.

Dr McLean is required to be compensated for his injury he sustained at work.

It is required for at least a nominal amount to be settled immediately

This because dr Mclean is in an extremely disadvantaged situation

This systemic abuse has been the causation already of his attempted suicide

He sees the continuation of his extreme hardship as an allegory of wanting to actually cause him malicious harm and due to his attempted suicide which is on the public record - actually kill him via method of catastrophically destroying him systemically via financial means

Dr Mclean is aware that 'mental illness' would be blamed if he suffered his fate due to this toxic abuse and he knows that no one would care - because he has already suffered a fatality and not one person was outraged - only dr mclean himself

This is not reason enough for the minister to immediately acknowledge this injustice.

It is within the remit the minister to act immediately in order that dr mclean be relieved of his hunger near homelessness and vile victimisation and oppression.

Dr McLean is at a point of existential risk; that not mean sending crisis team or another doctor or to the salvos for food. ...It means a political intervention in his justice. I will remind you about the charter of human rights for a person with a disability which is an ethical foundation of the country: It is against the law for a person with a disability:

- To not have access to the law or equality before it,
- To be discriminated against,
- To be taken advantage of,
- To have the sanctity of life removed,
- To be tortured,
- To have property (including money) withheld or redacted.

I will leave you now with:

A summary of potential prosperity he believes he may be owed,

WORK COVER FROM 2004: 500000

EXTRA UNITS OF COVER 2008 FROM HEALTH SUPER: FORMER PARTNER SETTLEMENT: 500000

HCF INCOME ASSIST INSURANCE:

MALPRACTICE CASE THAT WAS SILENCED: HOSPITAL SETTLEMENT FOR 'FATAL' INJURY: 300000

2021 WORK COVER CASE NOW A TPD: 500000 +

NASA ILLNESS AND INJURY COVER: 100000

MICRON21 DESTROYING MY BUSINESS WEBSITE: 200000

RUSSELL BALL PUBLIC LIABILITY AND FRAMING: 250000

DETRIMENT AT AFCA: 2000000

DETRIMENT AT AHRC: 1500000

VOCAT SEXUAL ABUSE CASE: 30000

VOCAT VIOLENT AFFRAY: 25000

THE HERALD SUN UNFAIR VILIFICATION: 250000
THE AGE RETRENCHMENT FOR PUBLIC VILIFICATION: 300000
PUBLIC INDEMNITY INSURANCE LIABILITY: 500000

His budget that is simply impossible and practically untenable moving forward,
Finally a photo of his last property in Frankston which was squatting in 45 degree heating a garage.

Can you please intervene as per legislation in order to relieve himf his financial distress and encourage his survival?

Signed:

Rich Mclean.

Ps please respond to Teo Knezic on teoknezic1202@gmail.com who is my advocate.

